

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                 |                                                                                                                                   |                               |                                                       |                                    |                                 |
|---------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------|-------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Arthur Albano                                                  | Team:<br>Team # 3                                                                                                                 | CCRB Case #:<br>201310827     | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                 |                                                                                                                                   |                               | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 11/11/2013 12:45 PM, Monday,<br>11/18/2013 12:00 AM | Location of Incident:<br>Intersection of West 169th Street and<br>Edward L. Grant Highway, and the 44th<br>Precinct stationhouse. | 18 Mo. SOL<br>5/11/2015       | Precinct:<br>44                                       |                                    |                                 |
| Date/Time CV Reported<br>Mon, 11/18/2013 1:36 PM                                | CV Reported At:<br>CCRB                                                                                                           | How CV Reported:<br>In-person | Date/Time Received at CCRB<br>Mon, 11/18/2013 1:36 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. POM Michele Butera | 21154  | 948723 | 044 PCT |
| 2. An officer         |        |        | Unknown |

| Witness Officer(s)          | Shield No | Tax No | Cmd Name |
|-----------------------------|-----------|--------|----------|
| 1. DT2 David Walsh          | 05921     | 913723 | AUTO CD  |
| 2. DT2 Christopher Connolly | 00899     | 903100 | AUTO CD  |
| 3. DT3 Daniel Fox           | 02422     | 923840 | AUTO CD  |

| Officer(s)             | Allegation                                                                                                                                                                      | Investigator Recommendation |
|------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Michele Butera | Abuse: At the intersection of West 169th Street and Edward L. Grant Highway, in the Bronx, PO Michele Butera stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants. | A . Exonerated              |
| B . POM Michele Butera | Abuse: Inside of the 44th Precinct stationhouse, PO Michele Butera detained § 87(2)(b)                                                                                          | B . Exonerated              |
| C . POM Michele Butera | Abuse: In the vicinity of the 44th Precinct stationhouse, PO Michele Butera searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.                                 | C . Substantiated           |
| D . An officer         | Abuse: In the vicinity of the 44th Precinct stationhouse, an officer threatened to arrest § 87(2)(b)                                                                            | D . Officer(s) Unidentified |

### Case Summary

On November 18, 2013, § 87(2)(b) appeared at the Civilian Complaint Review Board (CCRB), and filed this complaint on his own behalf and that of § 87(2)(b).

On November 11, 2013, at approximately 11:30 a.m., § 87(2)(b) was driving § 87(2)(b) on Edward L. Grant Highway. PO Michele Butera, of the 44<sup>th</sup> Precinct, stopped their vehicle due to an improperly displayed license plate. Subsequently, PO Butera told the individuals to come to the 44<sup>th</sup> Precinct stationhouse. The following allegations resulted due to this interaction.

- **Allegation A- Abuse of Authority- At the intersection of West 169th Street and Edward L. Grant Highway, in the Bronx, PO Michele Butera stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.**  
§ 87(2)(g)  
Consequently, it is recommended that **Allegation A** be closed as *exonerated*.
- **Allegation B- Abuse of Authority - Inside of the 44th Precinct stationhouse, PO Michele Butera detained § 87(2)(b)**
- **Allegation C- Abuse of Authority- In the vicinity of the 44th Precinct stationhouse, PO Michele Butera searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.**  
§ 87(2)(g)  
It is therefore recommended that **Allegation B** be closed as *exonerated* and **Allegation C** be closed as *substantiated*.
- **Allegation D- Abuse of Authority- In the vicinity of the 44th Precinct stationhouse, an officer threatened to arrest § 87(2)(b)**  
§ 87(2)(g)  
It is therefore recommended that **Allegation D** be closed as *officer unidentified*.

§ 87(2)(g)

### Results of Investigation

#### Civilian Statements

##### Complainant/ Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a § 87(2)(b) Hispanic man with brown eyes and salt and pepper hair.

##### CCRB Statement:

§ 87(2)(b) appeared at the CCRB on November 18, 2013 and provided the following statement

(encl. 4A-E):

At the time of the incident, § 87(2)(b) was being drive to work by his nephew, § 87(2)(b). § 87(2)(b)'s father owns a dealership in upstate New York and § 87(2)(b) was transporting the vehicle from the prior owner, § 87(2)(b), to his father's car dealership. The vehicle is a Range Rover. § 87(2)(b) stated that the vehicle had dealer plates on it, and since the bracket for the license plate was broken at the time, the back license plate was hanging from the back window, observable from outside of the vehicle. § 87(2)(b) stated that none of the windows were tinted, so the license plate could be clearly seen through the window. The temporary dealership license plate number was § 87(2)(b).

§ 87(2)(b) started driving down West 169<sup>th</sup> Street and made a right on Edward L. Grant Highway when a uniformed police officer in an unmarked black Crown Victoria sounded his horn from behind, causing § 87(2)(b) to pull over. § 87(2)(b) visually observed the officer's name as he approached as "PO Butera," bearing shield number 2115 (the investigation determined that this was PO Michele Butera of the 44<sup>th</sup> Precinct). PO Butera approached the driver's side window and stated to § 87(2)(b) that his plate was not visible. § 87(2)(b) told the officer where the license plate was located and PO Butera asked § 87(2)(b) to open the rear hatch so he could look at the license plate. § 87(2)(b) did not go to the rear of the vehicle with § 87(2)(b) and PO Butera, but knows that the rear hatch was open for just a matter of seconds. PO Butera said that the license plate looked funny and asked § 87(2)(b) and § 87(2)(b) to come back to the 44<sup>th</sup> Precinct stationhouse for further investigation. § 87(2)(b) and § 87(2)(b) agreed and followed PO Butera to the stationhouse. On his way, § 87(2)(b) called the vehicle's prior owner, § 87(2)(b) to come to the stationhouse to attest to the fact that the vehicle was legally purchased.

PO Butera led § 87(2)(b) and § 87(2)(b) to a room within the stationhouse, stated that he was going to run the vehicle identification number (VIN) and license plate, and left the room. Approximately eight to ten minutes later an unidentified plainclothes officer entered the room and told § 87(2)(b) and § 87(2)(b) to come with him outside to their vehicle. § 87(2)(b) described the plainclothes officer to be a 5'7" tall, 180-190 lb. white man with black hair, wearing a hoodie, sneakers and jeans, in his late 40s.

The unidentified officer then opened the front door of the vehicle and searched in between, and underneath the seats of the vehicle. The unidentified officer and PO Butera then went to the passenger's side of the vehicle and searched the seats and floors. § 87(2)(b) remained at the front of the vehicle during the search and could not see the exact places that the officers were searching, but § 87(2)(b) remained with the officers throughout the search. § 87(2)(b) stated that the officers did not open any glove compartments or consoles inside the vehicle. PO Butera and the plainclothes detective also asked § 87(2)(b) to open the rear hatch. Inside the rear cabin were miscellaneous items, such as shoes and cleaning supplies. The officers shuffled through these items, seemingly to attempt to see if anything was hidden underneath. After approximately 30 minutes of searching, § 87(2)(b) became frustrated and stated that the officers had already ran the license plate and VIN and knows that the vehicle is legal, so they are now harassing him and his nephew. § 87(2)(b) stated that he was "enflamed" at this point and was speaking in a loud voice to the officers. The plainclothes officer then stated, "Shut up, or I'll lock you up."

After a few more minutes, the prior owner, § 87(2)(b) had arrived at the stationhouse and spoke to PO Butera and the unidentified officer for approximately three to five minutes.

### **Photographic arrays**

§ 87(2)(b) participated in three separate photographic viewings of officers to identify the officer that allegedly threatened to arrest him. On May 9, 2014, § 87(2)(b) viewed eight officer photographs of officers of the Bronx Auto Crime Division, including Det. Walsh and Det. Fox, (encl. 6A-P) on August 5, 2014 eight officers of the 44<sup>th</sup> Precinct (encl. 7A-P), and on December 3, 2014, six officers of the 44<sup>th</sup> Precinct Detective Squad (encl. 8A-L). § 87(2)(b) stated that none of the officers presented in the photographic viewings match the officers that allegedly threatened to arrest him.

### **Victim:**

- § 87(2)(b) is § 87(2)(b)'s nephew and the driver of the vehicle that was stopped and subsequently searched.

### **CCRB Statement:**

On November 27, 2013, § 87(2)(b) was contacted via phone by the CCRB and provided the following statement (encl. 5A). § 87(2)(g)

On the date of this incident, § 87(2)(b) and § 87(2)(b) were transporting a vehicle to § 87(2)(b)'s father's dealership when they were stopped by PO Butera. PO Butera stated that he suspected that the vehicle was stolen, and they were asked to drive their vehicle to the 44<sup>th</sup> Precinct stationhouse. § 87(2)(b) complied with PO Butera's request.

At the stationhouse, § 87(2)(b) and § 87(2)(b) were told to stand beside the vehicle while PO Butera and an unidentified plainclothes officer searched the vehicle. While they were searching, the unidentified officer stated, "I could rip your air bags out, I could take the doors off, and could voucher the car, and you can't do anything about it." § 87(2)(b) did not specify to whom this remark was made. § 87(2)(b) observed the officers open all the car doors, enter the front of the vehicle, search the dashboard all the doors of the vehicle, and then both search the trunk. § 87(2)(b) stated that § 87(2)(b) was arguing with the officers, saying that he had to go to work, and the officers told him to shut up multiple times, stating that this wasn't his car. § 87(2)(b) also stated that the unidentified officer called § 87(2)(b) a "spic" and stated that he could put § 87(2)(b) and § 87(2)(b) in a cell, but did not specify why they could be arrested.

Eventually, § 87(2)(b) called the previous owner of the vehicle and obtained the title of the vehicle, which was presented to PO Butera and the unidentified officer. § 87(2)(b) and § 87(2)(b) subsequently left. § 87(2)(b) stated that he was not interested in participating with a formal investigation or possible mediation, because the complaint was between § 87(2)(b) and the officers. He therefore asked to withdraw from the complaint. He confirmed that his withdrawal was of his own free will, and no one from the CCRB, nor NYPD influenced his withdrawal. The withdrawal, located in IA# 13, was reviewed by Supervising Investigator Peña and he confirmed that § 87(2)(b)'s withdrawal met the agency standards.

### **NYPD Statements:**

#### **Subject Officer: PO MICHELE BUTERA**

- PO Butera was § 87(2)(b) at the time of the incident. He is a § 87(2)(b) white man with a bald head and brown eyes.

- PO Butera was scheduled to work from 8 a.m. to 4:35 p.m. coordinating Grand Larceny Autos in an unmarked black Ford Crown Victoria (vehicle #§ 87(2)(b) in uniform. PO Butera did not have a partner.

**Memo Book:**

“12:45 Car stop c/o 167 69<sup>th</sup> St. and EL Grant 2005 Range Rover could not see dealer plate on back window pulled vehicle over NY Dealer Place VIN was covered on Driver side of vehicle asked driver to meet me @ SH w/ plate and vehicle he agreed. § 87(2)(b). Vehicle released w/ driver he had no title owner came with title then released.” (encl. 9A-B).

**CCRB Statement**

PO Butera appeared at the CCRB on February 26, 2014, and provided the following statement (encl. 9C-E):

On the date of the incident, PO Butera stopped § 87(2)(b)'s vehicle at the corner of West 169<sup>th</sup> Street and Edward L. Grant Highway because his rear license plate was not visible at the back of the vehicle. PO Butera had stated that there were a number of vehicles that were reported stolen within a couple of blocks of that location in the previous 28 days. PO Butera approached the front of the vehicle, and then noticed the license plate affixed to the back window of the vehicle. PO Butera approached § 87(2)(b)'s window on the driver's side, and asked for § 87(2)(b)'s license and registration. § 87(2)(b) provided the documentation, and PO Butera noticed that the VIN located at the front windshield of § 87(2)(b)'s vehicle was covered by a loose piece of paper. PO Butera asked § 87(2)(b) to give him the license plate from the back of the vehicle. § 87(2)(b) gave the plate to PO Butera who noticed that it was a New York dealer plate. § 87(2)(b) explained to PO Butera that the vehicle was his father's that he just bought today, and he was transporting the vehicle to his father's dealership after dropping off his uncle at work first. PO Butera explained during his CCRB interview that when there are still dealer plates affixed to the vehicle, the vehicle can only be utilized for transport from owner to owner. PO Butera asked § 87(2)(b) if he had a title, a bill of sale, or any paperwork proving that he owns the vehicle. § 87(2)(b) stated that he did not, but that he would get his father on the phone. PO Butera then told § 87(2)(b) that often high-end vehicles, like Range Rovers, are “retagged,” meaning that they are stolen and the VINs are replaced with the VINs of a “jalopy” (less expensive vehicle) in order to have a VIN database check appear as the vehicle not being stolen. PO Butera explained to § 87(2)(b) that he could be driving a “retagged” vehicle and not know it. During the CCRB interview, PO Butera explained that he believed that § 87(2)(b) was driving a retagged vehicle because the VIN in the front was concealed and there were no license plates for the vehicle other than the dealer plates. PO Butera then asked § 87(2)(b) if he could follow PO Butera to the stationhouse to run the VIN and his license because he did not have a mobile computer terminal in his vehicle to check the VIN on the scene. PO Butera also advised § 87(2)(b) to contact the previous owner of the vehicle in the meantime, to help expedite the process. § 87(2)(b) and § 87(2)(b) agreed to come to the 44<sup>th</sup> Precinct stationhouse and followed PO Butera. PO Butera noted that § 87(2)(b) had stated that he had to go to work and was apparently upset, but still came with § 87(2)(b). PO Butera did not make any verbal statements to § 87(2)(b) during the vehicle stop.

When they arrived at the stationhouse, PO Butera led § 87(2)(b) and § 87(2)(b) to a waiting room near the front of the stationhouse and then he went to a computer to run the VIN of the vehicle. PO Butera saw that the VIN matched the license plate, and also checked additional

reference books within the stationhouse to determine whether there were any alterations to the vehicle, such as an unaccounted for sunroof. The process took approximately 25 minutes. PO Butera then approached § 87(2)(b) and § 87(2)(b) in the waiting room and stated that he wanted to check if all the VINs matched on the vehicle. PO Butera explained to § 87(2)(b) that inside all of the doors in the vehicle, there is a federal sticker that includes the VIN for the vehicle, the VIN found on this sticker should match the VIN that is located on the engine, on the front windshield, as well as the rest of the doors of the vehicle. § 87(2)(b) stated to PO Butera, “Fine, do what you have to do.” § 87(2)(b) also told PO Butera that he contacted the previous owner of the vehicle in order to verify the sale of the vehicle.

PO Butera then began checking the VINs on the vehicle by opening the doors of the vehicle. While PO Butera was doing this, § 87(2)(b) was becoming impatient and yelling to PO Butera that he had to go to work and that he was harassing them. PO Butera stated to § 87(2)(b) that he is not being detained and that he was free to leave, but PO Butera had to make sure that the vehicle wasn’t stolen because if he doesn’t check, there is a chance that § 87(2)(b) may be arrested somewhere else for driving a stolen vehicle, or § 87(2)(b)’s father could be arrested when the vehicle gets to the shop. PO Butera looked on the each of the doors of the vehicle, then inside the tailgate of the vehicle, and lifted the spare tire in the back to check the VIN printed there. PO Butera denied looking into any glove compartments of the vehicle and denies looking under any of the vehicle’s seats. PO Butera also stated that he may have looked at the gauges of the vehicle at one point, but other than that did not cross the threshold of the vehicle’s door. PO Butera stated that the VIN check lasted about 20 minutes. PO Butera stated that both § 87(2)(b) and § 87(2)(b) were free to leave because he saw no reason to detain them, but § 87(2)(b) was cooperative and told § 87(2)(b) that it was almost finished and to just be patient. During the time that PO Butera was checking the VINs, the previous owner of the vehicle arrived on the scene with the bill of sale. The owner, determined by investigation to be § 87(2)(b), presented the bill of sale to PO Butera. PO Butera noticed that the bill of sale was not signed. PO Butera told § 87(2)(b) to hold on to the bill of sale while he was transporting the vehicle, just in case he was pulled over again, and also told § 87(2)(b) that he could have given him a summons for “improper display of plate,” that he wasn’t going to, but to make sure going forward that the plate is displayed properly. § 87(2)(b) thanked him and then entered his vehicle with § 87(2)(b) and they drove away. PO Butera stated that he conducted all aspects of the investigation by himself, and no other officers interacted with § 87(2)(b) or § 87(2)(b) threatened to arrest § 87(2)(b) and no other officer assisted him in checking the VINs of the vehicle.

**Witness Officer: DET. DAVID WALSH**

- Det. Walsh was § 87(2)(b) at the time of the incident. He is a § 87(2)(b) white man with balding head and blue eyes.
- On the date of the incident, Det. Walsh was scheduled to work from 9:27 a.m. to 6 p.m. as an investigator in the Auto Crime division. At the time of the incident, Det. Walsh’s partner was Det. Daniel Fox. They were dressed in plainclothes and were driving an unmarked black Toyota Camry sedan (rental car #§ 87(2)(f), § 87(2)(g)). At 3:50 p.m. Det. Walsh was partnered with Det. Connolly in Rental car #§ 87(2)(f), § 87(2)(g).

**Witness Officer: DET. CHRISTOPHER CONNOLLY**

- Det. Connolly was § 87(2)(b) at the time of the incident. He is a § 87(2)(b) white man with hazel eyes and salt and pepper hair.
- Det. Walsh was scheduled to work from 10 a.m. to 7:30 p.m. Det. Walsh was conducting administrative duties until 6:30 p.m. where he was partnered with Det. Walsh in

plainclothes in an unmarked black Toyota Camry (Rental Auto #§ 87(2)(b), § 87(2)(c))

**Subject Officer: DET. DANIEL FOX**

- Det. Daniel Fox was § 87(2)(b) at the time of the incident. He is a § 87(2)(b) white man who is bald and has hazel eyes.
- On the date of the incident Det. Fox was scheduled to work from 9:27 a.m. to 6 p.m., as an investigator of the Auto Crime Division. He was partnered with Det. Walsh in plainclothes and unmarked black Toyota Camry (rental car #§ 87(2)(b), § 87(2)(c))

**Det. Walsh's, Det. Connolly's and Det. Fox's Memo Books:**

Det. Walsh (encl. 10A-B), Det. Connolly (encl. 11A-B) and Det. Fox (encl. 12A-C) do not have any memo book entries regarding this incident.

**CCRB Statements:**

Det. Walsh appeared at the CCRB on March 24, 2014 (encl. 10C-D), Det. Connolly appeared at the CCRB on March 24, 2014 (encl. 11C-D), and Det. Fox appeared at the CCRB on April 2, 2014 (encl. 12D-E). § 87(2)(g)

Det. Walsh was involved in administrative duties during the time of this incident, and did not leave the stationhouse until the end of his tour. Det. Walsh and Det. Fox had appeared at the 44<sup>th</sup> Precinct stationhouse at 2:30 p.m. vouchering a stolen 2010 Acura MDX pursuant to an investigation. Det. Walsh and Det. Fox left the 44<sup>th</sup> Precinct stationhouse at 3:40 p.m. without taking any other actions other than vouchering the stolen Acura. The three detectives denied interacting with any civilians at the stationhouse and denied searching a Range Rover or any SUV. The detectives were presented a photograph of § 87(2)(b) and did not recognize him. The three detectives denied threatening to arrest any individual on the date of the incident.

**Status of Civil Proceedings**

- On December 4, 2014, a notice of claim inquiry was sent to the New York City Comptroller's office. A response to this inquiry will be enclosed in the case file upon its receipt.

**Civilians Criminal History**

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

**Civilians CCRB History**

- This is the first CCRB complaint filed by either § 87(2)(b) or § 87(2)(b) (encl. 2B-C)

**Subject Officer(s) CCRB History**

- PO Michele Butera has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 2A).

**Conclusion**

**Identification of Subject Officers**

PO Butera admitted to stopping the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants, requesting that they come to the stationhouse, and deciding to search the vehicle during this incident. § 87(2)(g)

Neither § 87(2)(b) nor § 87(2)(b) were able to identify the plainclothes officer that threatened to arrest § 87(2)(b) and participated in the vehicle search. PO Butera testified that he conducted the search of the vehicle alone during this incident and that no plainclothes officer was present to interact with § 87(2)(b) or § 87(2)(b). Three detectives from the Auto Crime division (Det. Fox, Det. Connolly, and Det. Walsh) were interviewed at the CCRB, because the movement log from their command all note them coming to the 44<sup>th</sup> Precinct stationhouse during the approximate time of the vehicle search. All three detectives denied having any interaction with § 87(2)(b) or § 87(2)(b) denied searching any vehicle on the incident date, and testified to completing different tasks during the time of this incident. Photographic arrays of all members of the Auto Crime division, plainclothes officers of the 44<sup>th</sup> Precinct and members of the 44<sup>th</sup> Precinct Detective Squad who were working at the time of this incident were presented to § 87(2)(b). However, § 87(2)(b) stated definitively that none of the photographs of officers that were presented to him match the plainclothes officer that threatened to arrest him. § 87(2)(g)

### **Investigative Findings and Recommendations**

#### **Allegations not pleaded**

§ 87(2)(b) stated that the unidentified officer that threatened to arrest § 87(2)(b) called § 87(2)(b) a “spic,” and stated to § 87(2)(b) that he could rip off the doors and airbags of his vehicle. However, § 87(2)(b) voluntarily decided to withdraw his complaint, and not participate in the investigation to provide a sworn statement. § 87(2)(g)

#### **Allegation A- Abuse of Authority- At the intersection of West 169th Street and Edward L. Grant Highway, in the Bronx, PO Michele Butera stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.**

It is undisputed that the vehicle in which § 87(2)(b) was an occupant had a license plate that was not affixed to the back of the vehicle, but in the rear window of the vehicle. It is also undisputed that PO Butera stopped the vehicle for this reason.

VTL §204-1(a) states that no person shall operate a motor vehicle on the public highways unless numbered plates are conspicuously displayed, one on the front and one on the rear of such vehicle, each securely fastened so as to prevent the same from swinging and placed wherever reasonably possible, not higher than forty-eight inches and not lower than twelve inches from the ground. (encl. 1A)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **exonerated**.

#### **Allegation B- Abuse of Authority - Inside of the 44th Precinct stationhouse, PO Michele Butera detained § 87(2)(b)**

#### **Allegation C- Abuse of Authority- In the vicinity of the 44<sup>th</sup> Precinct stationhouse, PO**



**Michele Butera searched the vehicle in which § 87(2)(b) were occupants.**

It is undisputed that PO Butera asked § 87(2)(b) to come to the stationhouse and that § 87(2)(b) agreed to do so. § 87(2)(g) According to § 87(2)(b) PO Butera stated that § 87(2)(b)'s license plate looked strange. According to PO Butera, he noticed that the VIN on the dashboard of the vehicle had a piece of paper covering it. It is undisputed that at the stationhouse, PO Butera conducted some type of search of § 87(2)(b)'s vehicle. § 87(2)(g) According to § 87(2)(b) PO Butera had searched beneath seats and inside the trunk of the vehicle. According to § 87(2)(b) the officers also searched the dashboard of the vehicle. PO Butera stated that he was checking the VINs on the doors of the vehicle and underneath the spare tire in the trunk of the vehicle to see if they all matched. § 87(2)(b) stated that he did not follow PO Butera to see exactly where in the vehicle he searched, but that PO Butera did not open any compartments within the vehicle. PO Butera provided specific factors that led him to conduct a VIN search of § 87(2)(b)'s vehicle, and all statements are consistent to the fact that PO Butera was investigating the suspicion that the vehicle may be stolen. § 87(2)(g)

§ 87(2)(b) According to § 87(2)(b) after the officers brought himself and § 87(2)(b) to the stationhouse, they were told that the vehicle was going to be searched. PO Butera stated that § 87(2)(b) provided verbal consent for his vehicle to be searched.

An officer need at least founded suspicion that criminal activity is afoot to request consent to search a vehicle *People v. Leiva* 33 A.D.3d 1021 (2<sup>nd</sup> Dept. 2006) (encl. 1B-C).

A person's restriction of movement that is restricted by a factor independent of police conduct, is not a seizure by the means of the fourth amendment *Florida v. Bostick*, 501 U.S. 429 (1991) (encl. 1D-P).

The alteration of a public VIN may play a factor into establishing probable cause to justify a VIN search. *People v. Ahing* 125 A.D.2d 476 (2<sup>nd</sup> Dept. 1986) (encl. 1R) (*see also People v. Meyers* 139 A.D.2d 601 (2<sup>nd</sup> Dept. 1988) (encl. 1Q), an officer observed rivets holding the VIN plate differed from the rivets used by the manufacturer, combined with a crack in the windshield, provided officers with probable cause to conduct VIN search.)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [Redacted]

§ 87(2)(g) [Redacted]

Accordingly, it is recommended that **Allegation B** be closed as *exonerated* and **Allegation C** be closed as *substantiated*.

**Allegation D- Abuse of Authority- In the vicinity of the 44<sup>th</sup> Precinct stationhouse, an officer threatened to arrest** § 87(2)(b) [Redacted]

As stated in the officer identification section, the officer that threatened to arrest § 87(2)(b) [Redacted] was not identified by the investigation. It is therefore recommended that **Allegation D** be closed as *officer unidentified*.

Team: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date